



Request for Proposal RFP # 26-ODU-30-JNH

Title: AI-driven Enterprise Website Search and Personalization Solution

Issue Date: June 5, 2026

Due Date and Time: July 7, 2026 NLT 2:00 P.M. Local Time (Time Stamped 2:01 P.M. or Later Will Not Be Accepted)

Issuing Agency: Old Dominion University
Procurement Services, Suite 111
4401 Powhatan Ave
Norfolk, Virginia 23529-0308

Period of Contract:

In compliance with this Request for Proposal (RFP) and to all the conditions herein, the signatory agrees to faithfully execute any resulting contract, and offers to furnish the goods/services in accordance with the attached signed proposal or as mutually agreed upon by subsequent negotiation. An Agent authorized to bind the company to same shall sign the following section.

Name and Address of Contractor:	Date:	_____
_____	By:	_____
_____		Signature
_____	Name:	_____
_____		Typed or Printed (Name and Title)
FEI/FIN #:	Phone:	_____
_____	Fax:	_____
	Email:	_____

Are you or your company registered with eVA? _____ Yes _____ No eVA ID #: _____

Is your firm registered with the Commonwealth's State Corporation Commission (SEC)? If yes, please indicate identification number:

Are you or your firm certified through the Commonwealth's Department of Small Business and Supplier Diversity?

Yes _____ No _____

If yes, please indicate the following:

SWAM Designation: _____

Certification #: _____

Expiration Date: _____

I. **INSTRUCTIONS:**

- A. The University reserves the right to accept or reject any and all proposals in whole or in part, and wave any informality that may occur during the competitive negotiation process. Further, the University reserves the right to enter into any contract deemed to be in the best interest of the University.
1. Sealed proposals will be received by and in the office of issuing agency specific on page 1 of this RFP until July 7, 2026 NLT 2:00 PM local time. Proposals time-stamped 2:01 PM or later will not be considered, and will be returned to the Contractor unopened. The University is not responsible for late delivery by US Postal mail or other couriers.
 2. Should the University experience an 'unofficial' closing on and/or during the date and time specified herein for the receipt of sealed proposals, the closing date shall automatically extend to the next day the University is officially opened for business, with the receiving time remaining the same.
 3. It shall be the Contractor's responsibility to confirm any 'unofficial' closing(s).
- B. All inquires and questions regarding this solicitation must be directed to Janis Hall, Procurement IT Solutions Manager, Department of Procurement Services via email at jnhall@odu.edu, and are due NLT 2:00 PM (EST) June 16, 2026. A response via an addendum shall be issued for any such requests deemed to have any bearing on service delivery or cost.
- C. Identification of Proposal Envelope: The signed proposal should be returned in a separate envelope or package, sealed and identified as follows:

From:

_____ Name of Contractor	_____ July 7, 2026	_____ NLT 2:00 PM
_____ Address	_____ 26-ODU-30-JNH RFP Number	
_____ City, State, Zip Code	_____ AI-driven Enterprise Website Search and Personalization Solution RFP Title	

Name of Procurement Officer: Janis Hall

The envelope should be addressed as directed on Page 1 of the solicitation.

Proposals may be hand delivered to the designated location in the office issuing the solicitation. No other correspondence or other proposals should be placed in the envelope.

- D. The University may make such reasonable investigations as deemed proper and necessary to determine the ability of the Contractor to perform the services/furnish the goods and the Contractor shall furnish to the University all such information and data for this purpose as may

be requested. The University reserves the right to inspect the Contractor's physical facilities prior to award to satisfy questions regarding the Contractor's capabilities. The University further reserves the right to reject any proposal if the evidence submitted by, or investigations of, such Contractor fails to satisfy the University that such Contractor is properly qualified to carry out the obligation of the contract and to provide the services and/or furnish the goods contemplated herein.

- E. Announcement of Award: Upon the award or the announcement of the decision to award a contract as a result of this solicitation, the University will publicly post such notice on the eVA VBO website for a minimum of 10 days.
- F. Access to solicitation and addendum are posted and may be accessed at any time at <http://www.eva.virginia.gov>.
- G. Proposal Binding Period: Any response to this solicitation shall be valid for 120 days. At the end of the 120 days the proposal may be withdrawn at the written request of the Contractor. If the proposal is not withdrawn at that time it remains in effect until an award is made or the solicitation is cancelled.
- H. Contractor Certification: By submitting their proposals, Contractor's certify to the University that:
 - 1. Their proposals are made without collusion or fraud and that they have not offered or received any kickbacks or inducements from any other Contractor, supplier, manufacturer or subcontractor in connection with their proposal, and that they have not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or great value was exchanged. (the VPPA §2.2-4367 through §2.2-4377.)
 - 2. They will conform to the provisions of the Federal Civil Rights Act of 1964, as amended, as well as the Virginia Fair Employment Contracting Act of 1975, as amended, where applicable, the Virginians with Disabilities Act, and the Americans with Disabilities Act.
 - 3. If awarded the contract as a 'faith based' organization, they shall not discriminate against any recipient of goods, services, or disbursements made pursuant to the contract on the basis of the recipients, , religious belief, refusal to participate in a religious practice, or on the basis of race, age, color, gender or national origin and shall be subject to the same rules as other organizations that contract with public bodies to account for the use of the funds provided; however, if the faith-based organization segregates public funds into separate accounts, only the accounts and programs funded with public funds shall be subject to audit by the public body. (the Rules §36.E.)
 - 4. They do not and will not during the performance of any resulting contract employ illegal alien workers or otherwise violate the provision of the federal Immigration Reform and Control Act of 1986.
 - 5. They are not currently debarred by the Commonwealth of Virginia from submitting proposals on contracts for the type of goods and/or services covered by this solicitation, nor are they an agent of any person or entity that is currently so debarred.

6. They agree to faithfully enter into any resulting contract and further conveys, sells, assigns, and transfers to the Commonwealth of Virginia all rights, title and interest in and to all causes of action it may now have or hereafter acquire under the antitrust laws of the United States and the Commonwealth of Virginia, relating to the particular goods or services purchased or acquired by the Commonwealth of Virginia under said contract.
- I. Contractor Obligation: Contractor shall carefully examine the terms and conditions set forth in this Request for Proposal and any subsequent addenda. Failure to do so shall not relieve a Contractor of an obligation to furnish the goods and/or services specified in this Request for Proposal and its addenda.
- J. Discrimination by University is Prohibited:
 1. The University shall not discriminate against any Contractor during this solicitation or award of any resulting contract because of race, religion, color, sex, national origin, age, disability, any other basis prohibited by state law relating to discrimination in employment. (the Rules §9.A.)
 2. The University shall not discriminate against any Contractor during this solicitation or award of any resulting contract because the Contractor employs ex-offenders unless the University has made a written determination that employing ex-offenders on the specific contract is not in its best interest. (the Rules §9.D.)
 3. The University shall not (i) discriminate against a faith-based organization on the basis of the organization's religious character or (ii) impose conditions that (a) restrict the religious character of the faith-based organization, except as provided in subsection F of the Rules §36 , or (b) impair, diminish, or discourage the exercise of religious freedom by the recipients of such goods, services, or disbursements. (the Rules §36.C.)
- K. Virginia's Procurement Marketplace: The eVA procurement marketplace website, www.eva.virginia.gov, streamlines and automates government purchasing activities in the Commonwealth. The eVA portal is the gateway for Contractors to conduct business with state agencies and public bodies. All Contractors desiring to provide goods and/or services to the Commonwealth must register [here](#). Contractors must register in eVA and agree to pay the Supplier Transaction Fees specified on the eVA website.
- L. Ownership of all Data and Trade Secrets or Proprietary Information:
 1. Materials and documentation originated and prepared for the University pursuant to this RFP shall belong exclusively to the university and be subject to public inspection in accordance with the Virginia Freedom of Information Act, Chapter 37 (§ 2.2-3700 et seq.) of Title 2.2 of the Code of Virginia.
 2. Trade secrets or proprietary information submitted by a Contractor shall not be subject to public disclosure under the Freedom of Information Act; however, the Contractor must invoke the protections of §23-38.90 of the Code of Virginia, specifically the '*Rules Governing Procurement of Goods, Services, Insurance, and Construction by a Public Institution of Higher Education of the Commonwealth of Virginia (the "Rules")*', subsection F. of §34, in writing either before or at the time the data or other material is submitted.

3. The written notice must specifically identify the data or materials to be protected and state the reasons why protection is necessary. The proprietary or trade secret material submitted must be identified by some distinct method such as highlighting or underlining and must indicate only the specific words, figures, or paragraphs that constitute trade secret or proprietary information.
4. The classification of an entire proposal document, line-item prices and/or total proposal prices as proprietary or trade secrets is not acceptable and may result in rejection of the proposal.

M. Specifications:

1. Specifications used herein are to be considered a quality indicator and acceptance will be based on Contractor's compliance with the intent of the specifications. Deviations and/or exceptions taken to the specifications herein may be considered if they are deemed to meet the intent of the solicitation.
2. Unless otherwise provided in the Request for Proposal, the name of a certain brand, make, or manufacturer shall not restrict Contractors to the specific brand, make, or manufacturer named and shall be deemed to convey the general style, type, character, and quality of the article desired. Any article that the University in its sole discretion determines to be the equal of that specified considering quality, workmanship, economy of operation, and suitability for the purpose intended, shall be accepted. (the Rules §12.)

N. Proposal Bonds: (the Rules §28.) All proposal responses with a value greater than \$500,000 shall be accompanied by a 'proposal bond' executed by one or more surety companies selected by the Contractor that is authorized to do business in Virginia, as a guarantee that if the contract is awarded to the Contractor, Contractor will enter into the contract for the work specified in the proposal. The amount of the proposal bond shall not exceed five percent (5%) of the amount offered or proposed. The bond shall be payable to the Commonwealth of Virginia, naming also the University.

O. Alternative Forms of Security:

1. In lieu of a proposal bond, a Contractor may furnish a certified check or cash escrows in the face amount required for the bond.
2. If approved by the University's General Counsel or their equivalent, a Contractor may furnish to the University a personal bond, property bond, or bank or savings institution's letter of credit on certain designated funds in the face amount required for the proposal bond. Approval shall be granted only upon a determination that the alternative form of security proffered affords protection to the University equivalent to a corporate surety's bond.

P. References: Contractors shall complete and submit with response the requested account and reference information specified herein in Attachment A. Contractor shall provide a minimum of five (5) references, however, additional references may be included as a separate attachment incorporated into the response.

If at any time during the past ten (10) years the Contractor and/or any of the Contractor's currently named principals has conducted business and/or held a contract agreement of any type with Old Dominion University, either under the Contractor's current legal name or a

previous legal name including any sole proprietorship, corporation, partnership, limited liability corporation, or joint venture, etc., then Contractor shall include as a named reference, Old Dominion University.

If Old Dominion University is named as a reference in an Contractor's response, then Contractor's past performance for any and all Old Dominion University contracts held and/or completed during the specified ten (10) year period may be used to determine a Contractor's responsibility and subsequent award of this contract.

II. PURPOSE: The purpose of this Request for Proposal (RFP) is to solicit proposals through competitive negotiation for an AI-driven enterprise site search and personalization solution for Old Dominion University. The University seeks a qualified partner to implement, configure, train, and support a unified search experience across odu.edu and ODUGlobal web properties. The solution must improve content discovery, search relevance, accessibility, analytics, and the ability to deliver more tailored digital experiences for key audiences including prospective students, current students, parents and families, faculty and staff, alumni, and other external visitors.

III. BACKGROUND:

- A. The University: Old Dominion University is Virginia's forward-focused public doctoral research university and a VASCUPP member institution. The University maintains a broad digital ecosystem that serves prospective students, current students, faculty and staff, alumni, military-affiliated learners, adult learners, community members, and other stakeholders. In addition to the flagship odu.edu site, the University supports ODUGlobal web experiences that play a critical role in enrollment marketing, program discovery, and student support
- B. The Current Program: The University is evaluating next-generation site search and personalization capabilities to better serve users across multiple sites, subdomains, content types, and audience journeys. The desired future state includes a unified, scalable search experience that can support cross-site indexing; improved relevance and tuning; natural-language or conversational search experiences; actionable analytics on top queries, zero-result searches, and click behavior; accessibility monitoring; and content intelligence features that help the University improve search readiness over time. The University also seeks a solution that aligns with its Drupal-based ecosystem and can be managed efficiently by a higher education web team without excessive developer lift.
- C. The University's SWAM Plan:
 - 1. Old Dominion University is committed to achieving its FY2026 aspirational target of forty percent (40%) with firms certified by the Commonwealth's Department of Small Business and Supplier Diversity (DSBSD) for combined prime contractor and subcontractor spend.
 - 2. Plans submitted that include involvement and participation of certified DSBSD SWAM firms will be evaluated based on commitment to meeting the University's targets specified in above paragraph 1., and as applicable, will be awarded associated points as calculated and described herein.

3. The University also encourages Contractor's to provide for participation of small businesses, and businesses owned by women and minorities through partnerships, joint ventures, subcontracts, or other contractual opportunities. Submission of a report of past efforts to utilize the goods and services of such businesses, and plans for involvement on any resulting contract are required. By submitting response, Contractor certifies that all information provided in response to this solicitation is true and accurate. Failure to provide the information required by this solicitation may ultimately result in response being deemed non- response, and ultimately rejected.
4. In order for Contractors to be given consideration for award of a contract, each Contractor shall provide with their response (and/or no later than ten (10) business days after request, but prior to award, such statement(s) setting forth:
 - a. The good faith SWAM owned business participation efforts which the Contractor has undertaken in the past shall be submitted with Contractor's response as Attachment C; and
 - b. The good faith SWAM owned business participation efforts which the Contractor intends to undertake in connection with the performance of this contract shall be submitted with Contractor's response as Attachment D.
5. A quarterly report documenting SWAM utilization shall be submitted no later than the 10th of the month following the completion of each quarter (October 10, January 10, April 10, July 10). The University will provide a template for the SWAM Quarterly report.

D. Authorized Contract Participation: In accordance with the *University's Rules Governing Procurement of Goods, Services, Insurance and Construction ("Rules Document")*, specifically §6, Cooperative Procurement, it is the intent of this solicitation to allow any public body, public or private health or educational University's, or **Old Dominion University's** affiliated agencies and/or corporations, access and use of any subsequent contract(s), as authorized by the Contractor(s).

Participation in this cooperative procurement is strictly voluntary. If authorized by the Contractor(s), any resultant contract(s) may be extended to the entities as indicated above to purchase at contract prices in accordance with contract terms and conditions. The Contractor(s) shall notify **Old Dominion University** in writing of any entities accessing the contract. No modification of this contract or execution of a separate contract is required to participate. The Contractor(s) will provide semi-annual usage reports for all entities accessing the contract(s). Participating entities shall place their own orders directly with the Contractor(s) and shall fully and independently administer their use of the contract(s), including contractual disputes, invoicing and payments, without direct administration from **Old Dominion University**. **Old Dominion University** shall not be held liable for any costs or damages incurred by any other participating entity as a result of any authorization by the Contractor(s) to extend participation and use of the contract(s). It is understood and agreed that **Old Dominion University** is not responsible for the acts or omissions of any entity and will not be considered in default of the contract(s) no matter the circumstances.

Use of this contract does not preclude any participating entity from using other contracts or competitive processes as the need may be.

IV. STATEMENT OF NEEDS:

The selected Contractor shall provide a comprehensive AI-driven site search and personalization solution for odu.edu and ODUGlobal web properties. At a minimum, the proposal should address the following needs:

Unified Search Experience: Provide a search platform capable of indexing and managing content across multiple University web properties, domains, and subdomains through a unified administration model while still allowing site-specific controls, profiles, or result experiences where appropriate.

AI-Enhanced Search: Provide advanced search capabilities such as semantic relevance, natural-language query handling, smart answers or answer-first experiences, query assistance, synonym management, and other AI-supported tools that improve the accuracy and usefulness of results.

Personalization and Audience Relevance: Describe how the solution can support personalized or audience-aware experiences based on user intent, content type, location, behavior, or other configurable signals, while allowing the University to maintain governance and editorial control.

Search Administration and Governance: Include tools for promoting results, tuning rankings, managing synonyms, curating featured results, handling no-results queries, and applying business rules that reflect University terminology and priorities.

Analytics and Reporting: Provide analytics dashboards and reporting for search usage, top queries, click-through behavior, low-performing queries, zero-result searches, content gaps, engagement, and other metrics needed to guide ongoing optimization and leadership reporting.

Accessibility and Content Quality: Describe capabilities that support accessibility standards, including WCAG 2.1 AA and Section 508, and help identify content issues that may affect findability, usability, or AI-readiness, including content auditing and recommendations where available.

Implementation, Training, and Support: Provide implementation services, configuration, testing, launch support, administrator training, end-user documentation, and ongoing customer success and technical support. Contractors should describe the proposed implementation timeline, required University resources, and post-launch support model.

Integration and Technical Fit: Describe compatibility with Drupal and related web technologies, available APIs and modules, security and authentication considerations, indexing methods, and the approach for integrating with the University's existing digital environment.

Scalability and Future Readiness: Demonstrate how the solution can scale across additional sites,

content sources, and user experiences over time, including future enhancements related to AI-assisted discovery, personalization, and cross-site search governance.

Pricing Structure: Provide a clear pricing model that identifies one-time implementation costs, annual licensing or subscription fees, support costs, usage assumptions or thresholds, and any optional modules or services.

V. CONTRACT AND RENEWAL TERM:

1. The initial term of the contract shall be one year commencing upon execution;
2. The contract may be renewed by the University for five (5) successive one-year periods under the terms and conditions of the original contract except as stated in 2a. and 2.b. below. Cost considerations may be negotiated only at the time of renewal. Written notice of the University's intention to renew shall be given approximately 90 days prior to the expiration date of each contract period.
 - a. If the University elects to exercise the option to renew the contract for an additional one-year period **after the initial term**, the contract price(s) for the additional one year shall not exceed the contract price(s) of the initial contract term by the lesser of (1) the percentage increase/decrease of the Consumer Price Index (CPI) for All Urban Wage Earner and Clerical Workers (CPI-W), All U.S. Items, for base period 1982-84=100, for the previous twelve (12) month period, or (2) not to exceed 5%.
 - b. If during any subsequent renewal periods, the University elects to exercise the option to renew the contract, the contract price(s) for the subsequent renewal period shall not exceed the contract price(s) of the previous renewal period by the lesser of (1) the percentage increase/decrease of the Consumer Price Index (CPI) for All Urban Wage Earner and Clerical Workers (CPI-W), All U.S. Items, for base period 1982-84=100, for the previous twelve (12) month period, or (2) not to exceed 5%.

VI. GENERAL TERMS AND CONDITIONS: This solicitation and any resulting contract/purchase order shall be governed by the attached terms and conditions. See Exhibit A.

VII. SPECIAL TERMS AND CONDITIONS: This solicitation and any resulting contract/purchase order shall be governed by the attached terms and conditions. See Exhibit B.

VIII. ADDITIONAL SPECIAL TERMS AND CONDITIONS: This solicitation and any resulting contract/purchase order shall be governed by the attached terms and conditions. See Exhibit C.

IX. EVALUATION CRITERIA AND AWARD PROCESS: During the evaluation and selection process to determine the Contractors deemed to be fully qualified and best suited for negotiations, the following criteria and associated weights shall be used:

- A. Experience and References (25 points)
 1. Contractors demonstrated ability to provide enterprise site search, search analytics, AI-enhanced search, and/or digital personalization solutions at a minimum of five (5) institutions and/or organizations in the past five (5) years,

comparable to Old Dominion University in size, complexity, diversity of audiences, or breadth of digital offerings, to also include:

- a. The University and its operating environment, including higher education, public sector, or similarly complex multi-audience organizations;
 - b. Drupal or comparable enterprise web ecosystems, multi-site content environments, and cross-domain search implementations;
 - c. The Commonwealth of Virginia, public institutions, and/or higher education clients.
2. Demonstrated experience in designing, implementing, tuning, and supporting AI-driven site search, search analytics, accessibility-aware search experiences, and scalable personalization capabilities.

B. Capability and Skill (25 points)

1. Summary overview of current market presence and higher education/public sector experience;
2. Summary overview of resources available to provide and support the proposed solution, including implementation, onboarding, training, enhancement, maintenance, and ongoing support;
3. Identify roles and responsibilities of key personnel, provide resumes of proposed team members, and describe qualifications and work history relevant to enterprise search, AI capabilities, analytics, accessibility, and personalization.

C. Approach and Methodology (25 points)

1. Describe how the proposed team will communicate with the University during discovery, implementation, testing, launch, and ongoing optimization phases;
2. Describe implementation approach, timeline, training, change management, and transition-to-support activities;
3. Describe the various technologies, integrations, AI features, administration tools, and reporting capabilities that may be employed and/or required during the engagement;
4. Describe strategies that will allow for:
 - a. Successful engagement from project kick-off through implementation, testing, launch, and acceptance by the University;
 - b. Ongoing plans for continued maintenance, support, reporting, and optimization;
 - c. Continued program development and enhancement to increase search relevance, content discovery, personalization, accessibility, and overall solution effectiveness;
 - d. Future scalability of the solution across additional University sites, domains, content repositories, and use cases.

D. Responsiveness (5 points)

The degree to which the Contractor has responded to the Statement of Needs, including search, AI, analytics, accessibility, personalization, implementation, and support

requirements. Responsiveness to the request and overall quality of the proposal, including clarity, organization, and completeness of information presented, will be considered.

E. Costs (15 points)

The applicable scoring for “Cost” is completely objective and will be derived using a mathematical calculation.

F. Small, Women-Owned, and Minority-Owned Business Participation Plan. (5 points)

1. Contractors are encouraged to tailor their proposed SWAM Plans to meet or exceed the University’s aspirational target goals as specified herein, specifically Section III.B.1.
2. Like Cost, the evaluation of proposed SWAM Plan is completely objective, and associated points will be awarded based on a mathematical calculation, as follows:
 - a. Those submitting firms that are currently certified by DSBSD as Small Business, Small Minority-Owned Business, and/or Small Women-Owned Business shall receive the maximum points allowed under the associated SWAM Plan evaluation criteria;
 - b. Those submitting firms that are not DSBSD certified but have submitted a SWAM Plan that includes proposed expenditures and/or percentages with DSBSD certified subcontractors will be awarded a percentage of the associated points allowed under the SWAM Plan evaluation criteria.
3. Those submitting firms that are not DSBSD certified and have submitted a SWAM Plan that does not include any proposed expenditures and percentages with DSBSD certified subcontractors will be awarded zero (0) points.

X. EVALUATION, NEGOTIATION AND AWARD:

- A. After the initial evaluation to determine those short-listed Contractors most fully qualified and best suited to conduct negotiations, based on the evaluation criteria and associated weights specified in above IX.A.-F., the University shall invite those short-listed Contractors to provide Oral Presentations to engage in individual discussions and negotiations with the Selection Advisory Committee (“SAC”).
- B. Repetitive discussions and negotiations are permitted. Contractors shall be encouraged to elaborate on their qualifications, performance data, staff expertise, and costs relevant to the proposed contract. Contractors may also propose alternate concepts or methodology.
- C. During the presentations/negotiations phase, the selected Contractor(s) may be asked to submit in writing Revised Intermediary Pricing (RIP). At the conclusion of presentations/negotiations, the Contractor(s) may be asked to submit in writing, **a Best And Final Offer (BAFO)**. After the BAFO is submitted and if applicable, no further negotiations shall be conducted with the selected Contractor(s). The Contractor’s proposal will be rescored to combine and include the information contained in the BAFO. The decision to award will be based on the final evaluation including the BAFO, when applicable.
- D. At the conclusion of the presentations/negotiations, including when applicable any requested **BAFO**, using only the evaluation criteria specified in above IX.A.-F., (not the associated weights), and adding the new criteria “Oral Presentations”, the SAC members shall then use all information gathered from the proposal, discussions, presentations, negotiations and any

additional information provided by the Contractor to determine the overall “best proposal”, and make recommendation to award accordingly.

- E. The SAC members shall in descending order and based on the number of short-listed contractors, ‘rank order’ the Contractors for each of the specified evaluation criteria, e.g., criteria is “Experience” and three (3) is the number of short-listed Contractors, therefore each SAC member will rank in descending order of preference each Contractor as either 3, 2, or 1 (five short-listed Contractors – 5, 4, 3, 2, 1, etc.).
- F. Each SAC member shall use the same ranking methodology for each of the remaining evaluation criteria specified, including “Oral Presentations”.
- G. No SAC member may rank any of the short-listed Contractors the same within the specified for criteria IX.A.1. - 4, e.g., criteria is “Experience” and three (3) is the number of short-listed Contractors, ranking must be 3, 2, 1, and can never be 3, 3, 3, or 3, 2, 2, or 3, 1, 1, etc.
- H. The SAC members shall not rank order Contractors for evaluation criteria IX.A.5., Costs, or IX.A.6., SWAM. The associated scoring for each short-listed Contractor for these criteria shall be calculated on a one-point (1) basis as follows:
 - 1. **Costs:**
 - a. The final total cost for each short-listed Contractor shall be used, including any requested and submitted BAFO;
 - b. The same calculation methodology as specified in above IX.A.5. shall be used, replacing the associated ‘weight’ with a new weight equaling ‘1’ point.
 - 2. **SWAM:** The same calculation methodology as specified in above IX.A.6. shall be used, replacing the associated ‘weight’ with a new weight equaling ‘1’ point.
- I. After each SAC member has provided their individual rank order for each of the specified criteria, and the Cost and SWAM calculation has been calculated as described above, all scores for each Contractor shall be totaled, and based on same, the SAC and lead Procurement officer will make a recommendation for award to the Assistant Director for Procurement Services.
- J. Should the Agency determine in writing and in its sole discretion that only one Contractor is fully qualified, or that one Contractor is clearly more highly qualified and suitable than the others under consideration, a contract may be negotiated and awarded to that Contractor.

XI. PROPOSAL PREPARATION AND SUBMISSION REQUIREMENTS:

A. General Requirements:

- 1. In order to be considered for selection, Contractor(s) must submit a complete response to this RFP, either via eVA or hand delivered/mail. If response is being submitted by hand delivery, USPS, FedEx, UPS, etc., Contractor shall provide one (1) original, fully executed response and one electronic response via flash drive. Electronic response must include the original proposal with fee and pricing information, and a copy without fee and pricing information. No other distribution of the proposal shall be made by the Contractor.
- 2. Each copy of the proposal should be bound or contained in a single volume where practical. All documentation submitted with the proposal should be included.
- 3. Proposals shall be signed by an authorized representative of the Contractor. All information requested should be submitted. Failure to submit all information

requested may result in the University requiring prompt submission of missing information and/or giving a lowered evaluation of the proposal. Proposals which are substantially incomplete or lack key information may be rejected by the University. Mandatory requirements are those required by law or regulation or are such that they cannot be waived and are not subject to negotiation.

4. All proposals shall be received and time stamped in the Issuing Office no later than the Closing Date and Time shown on the cover page of this Request for Proposal. Any proposal received after the specified date and time shall not be considered and shall be returned unopened to the Contractor.
5. All information requested by this RFP on the ownership, utilization and planned involvement of small businesses, women owned businesses and minority-owned businesses must be submitted. If a Contractor fails to submit all information requested the Issuing agency may require prompt submission of missing information after the receipt of Contractor proposals.
6. Proposals should be organized in the order in which the requirements are presented in the RFP. All pages of the proposals should be numbered. Each paragraph in the proposal should reference the paragraph number of the corresponding section of the RFP. It is also helpful to cite the paragraph number sub letter and repeat the text of the requirement as it appears in the RFP. If a response covers more than one page, the paragraph number and sub letter should be repeated at the top of the next page. The proposal should contain a table of contents which cross references the RFP requirements. Information which the Contractor desires to present that does not fall within any of the requirements of the RFP should be inserted at an appropriate place or be attached at the end of the proposal and designated as additional material. Proposals that are not organized in this manner risk lower scoring and/or elimination from consideration if the evaluators are unable to find where the RFP requirements are specifically addressed.

B. Submission of Proposals: Contractors are required to submit the following items as a complete proposal:

1. The return of the RFP cover sheet and all addenda acknowledgments, if any, signed and filled out as required;
2. Complete Pricing Pages, Contractor Data Sheet, Past SWAM Plan(s), Proposed SWAM Plan, and Substitute W-9 Form, included as attachments to the RFP, and other specific items or data requested in the RFP;
3. Written narrative statements to include how the Contractor plans to successfully meet the objectives and requirements defined herein, specifically those stated in Section IV. "Statement of Needs";
4. Written narrative statements providing information as required in support of the various components defined in Section IX. A., "Evaluation Criteria", as follows:
 - a. Experience;
 - b. Capability and Skills;
 - c. Responsiveness
 - d. Costs; and

e. SWAM Plan

5. Exceptions: Contractor must detail under separate tab identified as “Exceptions”, any issues (referenced by specific paragraph/section of the RFP document and/or Addenda) with which they disagree or wish to clarify position. Failure to identify any exceptions to the RFP document and/or any associated Addenda will be interpreted to mean that the Contractor is in full agreement with the all provisions of the RFP document and/or Addenda, including, but not limited to, (i) statement of needs/scope of work, (ii) terms and conditions, both general and specific, as applicable, (iii) submission requirements, (iv) evaluation and award criteria and process, and (v) all other requirements as specified in the RFP document and/or Addenda.

XII. FEES AND PRICING: Any and all proposed fees and pricing can and may be negotiated, as necessary, to meet the needs and requirements of the University. The information provided will be included in the evaluation process but shall not be the sole determining factor for any subsequent contract award.

A. University Provided Schedule:

1. Contractors shall provide pricing as requested below and shall return this pricing information with their response. It shall be the Contractors responsibility to determine the associated costs accordingly, and reflected pricing shall be all inclusive, and shall include all services and affected assets and human resources described herein, unless otherwise noted by Contractor. No other additional costs shall be allowed unless otherwise negotiated and approved by the University.
2. When completing the Contract Pricing Schedule, Contractors should base their costs, calculations and projections on contracts having similar scope and requirements. If Contractor feels there is a need to provide pricing for additional deliverables or service components not specified herein, they may do so, but such pricing shall be presented separately from the University provided the Contract Pricing Schedule.
3. Contractors may also provide alternative pricing and format but must first provide as requested above. Any alternative pricing may be accepted and/or considered by the University, accordingly. Additionally, the University shall reserve the right to negotiate any and all pricing and/or financial considerations deemed necessary.
4. **Cost Evaluation** component of the proposal will be based on the grand total pricing in the following pricing schedule:

University Provided Pricing Schedule		
Description	Costs	Detailed List of What's Included
One time implementation costs	\$	
One time training costs	\$	
First year licensing costs	\$	
First year support costs	\$	
Year 1 Total	\$	Total combined cost of all one time and year 1 annual fees as outlined above.
Year 2 annual costs		
Year 3 annual costs		
Year 4 annual costs		
Year 5 annual costs		
Grand Total – Year 1 - 5	\$	

The Contractor shall clearly identify and describe all Optional Costs that are not included in the University Provided Contract Schedule. Each option cost must be separately listed and must include a detailed description of what is included, the conditions under which the cost may apply and the method of pricing.

Description	Cost	Detailed List of What's Included
Training	\$	
Usage assumptions or thresholds	\$	
Optional modules or services	\$	

5. Pricing submitted that includes cost per hour, shall be all inclusive without any allowable reimbursable expenses or per diem rates. Additionally, per hour rates will be billed as 'actual', and shall be validated by the Contract Administrator prior to acceptance and payment.
6. Pricing submitted that includes 'travel expenses' and/or reimbursable 'per diem' shall be administered as follows:
 - a. University will appoint a contract manager for expense approvals;
 - b. Approved travel expenses will be reimbursed by University on a 'monthly' basis, and at cost;
 - c. In order to qualify for University travel reimbursement the Contractor must obtain proper advance review and University approval prior to incurring the cost;
 - d. The allowable reimbursement for 'Daily' per diem shall be in accordance with Commonwealth of Virginia's most recently dated and published State Travel Regulations, CAPP Manual Topic No. 20335, specifically "Lodging/M&IE" guidelines. http://www.doa.virginia.gov/Admin_Services/CAPP/CAPP_Topics/20335-2011.pdf

XIII. ATTACHMENTS and EXHIBITS

- A. Attachment A – CONTRACTOR DATA SHEET
- B. Attachment B – CONFLICT OF INTEREST STATEMENT
- C. Attachment C – CONTRACTORS PAST SWAM HISTORY
- D. Attachment D – CONTRACTORS PROPOSED SWAM PLAN
- E. Substitute W9 – COMMONWEALTH OF VIRGINIA'S SUBSTITUTE W9 FORM
- F. Exhibit A – GENERAL TERMS AND CONDITIONS
- G. Exhibit B – SPECIAL TERM AND CONDITIONS
- H. Exhibit C – ADDITIONAL SPECIAL TERMS AND CONDITIONS

RFP #26-ODU-30-JNH

ATTACHMENT B**CONFLICT OF INTEREST STATEMENT****RFP #26-ODU-30-JNH**

Ensure that the solicitation is thoroughly read and completed. Complete, sign and return the information requested below with your proposal. FAILURE TO FURNISH THIS DATA MAY RESULT IN DECLARING YOUR PROPOSAL NON-RESPONSIVE.

NAME: _____

ADDRESS: _____

CITY/STATE: _____

TELEPHONE NUMBER: _____

RELATIONSHIP WITH THE COMMONWEALTH OF VIRGINIA:

IS ANY MEMBER OF THE FIRM AN EMPLOYEE OF THE COMMONWEALTH OF VIRGINIA WHO HAS A PERSONAL INTEREST IN THIS CONTRACT PURSUANT TO THE CODE OF VIRGINIA, SECTION 2.1-639.1 - 639.24?

() YES () NO

IF YES, EXPLAIN:

BY SIGNING THIS ATTACHMENT B, "CONFLICT OF INTEREST STATEMENT", OFFEROR ACKNOWLEDGES AND UNDERSTANDS THE PROVISIONS AND REQUIREMENTS RELATED TO OFFER'S CONDUCT AND PERFORMANCE DURING ANY SUBSEQUENT CONTRACT AWARD AS SPECIFIED UNDER:

1. Old Dominion University Policy 1002, Code of Ethics ([University Policy 1002](#));
2. Article 6 of the Virginia Public Procurement Act, code sections § 2.2-4367 - § 2.2-4377 ([VPPA Article 6](#));
3. The State and Local Government Conflict of Interests Act (§ [2.2-3100](#) et seq.);
4. The Virginia Governmental Frauds Act (§ [18.2-498.1](#) et seq.), and Articles 2 (§ [18.2-438](#) et seq.) and 3 (§ [18.2-446](#) et seq.) of Chapter 10 of Title 18.2.

SIGNATURE OF OFFEROR_____
DATE

ATTACHMENT C

List women-owned, minority-owned, or small businesses with which the Offeror has contracted or done business and dollar amounts spent with each of these businesses in the most recent 12-month period for which data is available. Offerors are encouraged to provide additional information and expand upon the following format:

PERIOD: **FROM:**_____ **TO:**_____

Firm Name	Firm Address	Firm Phone Number	Contact Person	Type of Businesses*	Type of Goods or Services	Dollar Amounts	% Total Expenditures for Goods & Services

* Indicate W - if women-owned, M - minority-owned, or S - small business.

ATTACHMENT D

Describe Offeror's plans to involve women-owned, minority-owned, and small businesses in the performance of this contract either as part of a joint venture, as a partnership, as subcontractors or as suppliers. Offerors are encouraged to provide additional information and expand upon the following format:

Firm Name	Firm Address	Firm Phone Number	Contact Person	Type of Businesses*	Type of Goods or Services	Dollar Amounts	% Total Expenditures for Goods & Services

* Indicate W - if women-owned, M - minority-owned, or S - small business.

Form W-9 Commonwealth of Virginia Substitute W-9 Form Revised December 2017	Request for Taxpayer Identification Number and Certification									
Section 1 - Taxpayer Identification	☐ Social Security Number (SSN) ☐ Employer Identification Number (EIN) _____		Please select the appropriate Taxpayer Identification Number (EIN or SSN) type and enter your 9 digit ID number. The EIN or SSN provided must match the name given on the "Legal Name" line to avoid backup withholding. If you do not have a Tax ID number, please reference "Specific Instructions - Section 1." If the account is in more than one name, provide the name of the individual who is recognized with the IRS as the responsible party.							
	Dunn & Bradstreet Universal Numbering System (DUNS) (see instructions) _____		<table border="1" style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 30%;">Legal Name:</td> <td></td> </tr> <tr> <td>Business Name:</td> <td></td> </tr> </table>		Legal Name:		Business Name:			
	Legal Name:									
	Business Name:									
	<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 40%;">Entity Type</th> <th style="width: 30%;">Entity Classification</th> <th style="width: 30%;">Exemptions (see instructions)</th> </tr> </thead> <tbody> <tr> <td> ☐ Individual ☐ Corporation ☐ Sole Proprietorship ☐ S-Corporation ☐ Partnership ☐ C-Corporation ☐ Trust ☐ Disregarded Entity ☐ Estate ☐ Limited Liability Company ☐ Government ☐ Partnership ☐ Non-Profit ☐ Corporation </td> <td> ☐ Professional Services ☐ Medical Services ☐ Political Subdivision ☐ Legal Services ☐ Real Estate Agent ☐ Joint Venture ☐ VA Local Government ☐ Tax Exempt Organization ☐ Federal Government ☐ OTH Government ☐ VA State Agency ☐ Other </td> <td> Exempt payee code (if any): (from backup withholding) _____ Exemption from FATCA reporting code (if any): _____ </td> </tr> </tbody> </table>		Entity Type	Entity Classification	Exemptions (see instructions)	☐ Individual ☐ Corporation ☐ Sole Proprietorship ☐ S-Corporation ☐ Partnership ☐ C-Corporation ☐ Trust ☐ Disregarded Entity ☐ Estate ☐ Limited Liability Company ☐ Government ☐ Partnership ☐ Non-Profit ☐ Corporation	☐ Professional Services ☐ Medical Services ☐ Political Subdivision ☐ Legal Services ☐ Real Estate Agent ☐ Joint Venture ☐ VA Local Government ☐ Tax Exempt Organization ☐ Federal Government ☐ OTH Government ☐ VA State Agency ☐ Other	Exempt payee code (if any): (from backup withholding) _____ Exemption from FATCA reporting code (if any): _____		
	Entity Type	Entity Classification	Exemptions (see instructions)							
	☐ Individual ☐ Corporation ☐ Sole Proprietorship ☐ S-Corporation ☐ Partnership ☐ C-Corporation ☐ Trust ☐ Disregarded Entity ☐ Estate ☐ Limited Liability Company ☐ Government ☐ Partnership ☐ Non-Profit ☐ Corporation	☐ Professional Services ☐ Medical Services ☐ Political Subdivision ☐ Legal Services ☐ Real Estate Agent ☐ Joint Venture ☐ VA Local Government ☐ Tax Exempt Organization ☐ Federal Government ☐ OTH Government ☐ VA State Agency ☐ Other	Exempt payee code (if any): (from backup withholding) _____ Exemption from FATCA reporting code (if any): _____							
	Contact Information									
	Legal Address:		Name:							
			Email Address:							
City: State : Zip Code:		Business Phone:								
Remittance Address:		Fax Number:								
		Mobile Phone:								
City: State : Zip Code:		Alternate Phone:								
Section 2 - Certification	Under penalties of perjury, I certify that: 1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me), and 2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or c) the IRS has notified me that I am no longer subject to backup withholding, and 3. I am a U.S. citizen or other U.S. person (defined later in general instructions), and 4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.									
	Certification instructions: You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See instructions titled Certification									
Printed Name:										
Authorized U.S. Signature:				Date:						

OLD DOMINION UNIVERSITY
GENERAL TERMS AND CONDITIONS

- A. ADVERTISING: Contractor agrees that that no indication of such sales or services to the University will be used in product literature or advertising during the contract term of any contract award for supplies, equipment, or services resulting from this proposal.
- B. ADDITIONAL GOODS AND SERVICES: The University reserves the right to have the Contractor provide additional goods and/or services that may be required by the University during the Term of this contract. Any such goods and/or services will be provided under the same terms and conditions of this contract. Such additional goods and services may include other products, components, accessories, subsystems or services provided by the Contractor. These additional goods and services will be provided to the University at Favored Customer pricing.
- C. ANTITRUST: By entering into a contract, Contractor conveys, sells, assigns, and transfers to the Commonwealth of Virginia all rights, title and interest in and to all causes of the action it may now have or hereafter acquire under the antitrust laws of the United States and the Commonwealth of Virginia, relating to the particular goods or services purchased or acquired by the Commonwealth of Virginia under this Contract.
- D. APPLICABLE LAWS AND COURTS: This contract shall be construed, governed, and interpreted pursuant to the laws of the Commonwealth of Virginia without regard to choice of law principles. The Parties agree that all disputes arising under this contract shall be brought in the state or federal courts located in Norfolk, Virginia. To the extent any provision of the Agreement is prohibited by Virginia law, or is otherwise not authorized by Virginia law, due to the University's status as an agency of the Commonwealth of Virginia, such provision is null and void. Each party shall be responsible for its own legal fees and costs unless otherwise ordered by a court of law.
- E. APPLICABLE LEGISLATION AND MANUAL: This contract is subject to the provisions of the Commonwealth of Virginia, specifically § 23-38.90 of the Code of Virginia and its associated Rules Governing the Procurement of Goods, Services, Insurance and Construction ("the Rules") and the Purchasing Manual for Universities of Higher Education and their Contractors and any revisions thereto, which are hereby incorporated into this contract in their entirety. A copy of the manual is accessible on the Internet at www.odu.edu/procurement under "Laws, Policies & Procedures".
- F. ARBITRATION: Neither Party shall be compelled to agree to any form of binding alternative dispute resolution, but may request and/or opt to participate in non-binding alternative dispute resolution in its sole discretion.
- G. ASSIGNMENT OF CONTRACT: This contract shall not be assignable in whole or in part without the written consent of the University.
- H. AVAILABILITY OF FUNDS: The University shall be bound hereunder only to the extent of the funds available or which may hereafter become available during each subsequent fiscal year and/or

contract term, as applicable, and any requirement by Contractor for any total or partial compensation or payment by the University of unpaid fees, whether current or future, for lost profit and/or as liquidated damages in the event of early termination of the then current term if for other than breach by the University is prohibitive.

- I. **AUDIT:** Contractor agrees that they shall retain all books, records, and other documents relative to any resulting contract for five (5) years after final payment, or until audited by the Commonwealth of Virginia, whichever is sooner. The University, its authorized agents, and/or state auditors shall have full access to and the right to examine any of said materials during said period.
- J. **BACKGROUND CHECKS:** Contractor is responsible for conducting criminal background checks for any and all personnel proposed to work on the University's campus and must provide copies of same to the University's Contract Administrator. If Contractor's employees and agents will be on the ODU campus, or have access to protected data as defined herein, Contractor must comply with the following: Contractor shall ensure that its employees, full-time or part-time, including newly hired, re-hired, seasonal, and/or temporary, who may have access to ODU confidential or proprietary information, or data about ODU personnel or students, have passed a criminal background check pursuant to the *Virginia Code* § 2.2-1201.1. Criminal background checks shall comply with the standards set forth in University Policy 6021 found at:
<https://www.odu.edu/about/policiesandprocedures/university/6000/6021>
- K. **CHANGES TO THE CONTRACT:** During the term of the contract, including any and all applicable extensions and/or renewals, changes may be made to the contract in any of the following ways:
 - 1. The parties may agree in writing to modify the scope of the contract. An increase or decrease in the price of the contract resulting from such modification shall be agreed to by the parties as a part of their written agreement to modify the scope of the contract.
 - 2. The University may request and issue change orders within the general scope of the contract at any time by written notice to the Contractor. Changes within the scope of the contract include, but are not limited to, things such as services to be performed, the method of packing or shipment, and the place of delivery or installation. The Contractor shall comply with the notice upon receipt. The Contractor shall be compensated for any additional costs incurred as the result of such order and shall give the University a credit for any savings. Said compensation shall be determined by one of the following methods:
 - 1. By mutual agreement between the parties in writing; or
 - 2. By agreeing upon a unit price or using a unit price set forth in the contract, if the work to be done can be expressed in units, and the Contractor accounts for the number of units of work performed, subject to the University's right to audit the Contractor's records and/or to determine the correct number of units independently; or
 - 3. By ordering the Contractor to proceed with the work and keep a record of all costs incurred and savings realized. A markup for overhead and profit may be allowed if provided by the contract. The same markup shall be used for determining a decrease in price as the result of savings realized. The Contractor shall present the University with all vouchers and records of expenses incurred and savings realized. The University shall have the right to audit the records of the Contractor as it deems

necessary to determine costs or savings. Any claim for an adjustment in price under this provision must be asserted by written notice to the University within thirty (30) days from the date of receipt of the written order from the University. If the parties fail to agree on an amount of adjustment, the question of an increase or decrease in the contract price or time for performance shall be resolved in accordance with the procedures for resolving disputes provided by the Disputes Clause of this contract or, if there is none, in accordance with the disputes provisions of the Commonwealth of Virginia *Purchasing Manual for Universities of Higher Education and their Contractors*. Neither the existence of a claim nor a dispute resolution process, litigation or any other provision of this contract shall excuse the Contractor from promptly complying with the changes ordered by the University or with the performance of the contract generally.

- L. CONFLICT OF INTERESTS: The Contractor attests represents to the University that its entering into this Contract with the University and its performance through its agents, officers and employees does not and will not involve, contribute to nor create a conflict of interest prohibited by the Virginia State and Local Government Conflict of Interests Act (§ 2.2-3100 *et seq* of the *Code of Virginia (Virginia Code)*, the Virginia Ethics In Public Contracting Act (*Virginia Code* § 2.2-4367 *et seq*), the Virginia Governmental Frauds Act (*Virginia Code* § 18.2-498.1 *et seq*) or any other applicable law or regulation. Should circumstances change, the Contractor will notify the University of any potential conflict of interests prohibited under law.
- M. CONTRACTUAL CLAIMS PROCEDURE: *The Rules* § 53 requires Contractors with the University to submit any claims, whether for money or other relief, in writing no later than 60 days after final payment; however, written notice of the Contractor's intention to file such a claim must be given at the time of the occurrence or beginning of the work upon which the claim is based. The University's procedure for deciding such contractual claims is:
1. The Contractor must provide the written claim to:
Assistant Director of Procurement
Old Dominion University
4401 Powhatan Ave
Norfolk, VA 23529
 2. Although Contractor may, if it chooses, attempt to resolve its claim by dealing with a University department other than the one stated in Section 1 above, Contractor must submit any unresolved claim in writing no later than 60 days after final payment to the Assistant Director of Procurement if it wishes to pursue its claim.
 3. Upon receiving the written claim, the Assistant Director of Procurement will review the written materials relating to the claim and decide whether to discuss the merits of the claim with Contractor. If such discussion is to be held, the Assistant Director of Procurement will contact Contractor and arrange such discussion. The manner of conducting such discussion will be as Assistant Director of Purchasing and Contractor mutually agree.
 4. The Assistant Director of Purchasing will mail his or her decision to Firm within 60 days after receipt of the claim. The decision will state the reason for granting or denying the claim.
 5. Contractor may appeal the decision to:

Executive Director of Strategic Sourcing and Payment Solutions
Old Dominion University
4401 Powhatan Ave
Norfolk, VA 23529

6. Upon receiving the written appeal, the Executive Director of Strategic Sourcing and Payment Solutions will review the written materials relating to the claim and decide whether to discuss the merits of the claim with Contractor. If such discussion is to be held, the Executive Director and Assistant Director will contact Contractor and arrange such discussion. The manner of conducting such discussion will be as the Director of Procurement and Assistant Director and Contractor mutually agree.
7. The Executive Director of Strategic Sourcing and Payment Solutions will mail his or her decision to Firm within 60 days after the receipt of the appeal. The decision will state the reasons for granting or denying the appeal.

Nothing in this procedure will preclude either party from filing a claim in any court of the Commonwealth of Virginia to seek legal or equitable remedy if a dispute should arise, in addition to such other remedies as are expressly provided in this contract. Contractor may not, however, file such claim unless and until it has complied fully with the procedure set forth in this provision.

- N. **DEFAULT:** In case of failure to deliver goods or services in accordance with the contract terms and conditions, the University, after due oral or written notice, may procure them from other sources and hold the Contractor responsible for any resulting additional purchase and administrative costs. This remedy shall be in addition to any other remedies which the University may have.

- O. **DISCOUNTS:**

1. **Prompt Payment Discounts:** The University will pay within 30 days after acceptance. A prompt payment discount offered for prompt payment of (20) calendar days or longer will be calculated in determining net low proposal.
2. **Special Educational Or Promotional Discounts:** The Contractor shall extend any special educational or promotional sale prices or discounts immediately to the University during the term of the contract. Such notice shall also advise the duration of the specific sale or discount price.

- P. **DRUG-FREE WORKPLACE:** *(the Rules §11.)*

During the performance of the contract, the Contractor agrees to (i) provide a drug-free workplace for the Contractor's employees; (ii) post in conspicuous places, available to employees and applicants for employment, a statement notifying employees that the unlawful manufacture, sale, distribution, dispensation, possession, or use of a controlled substance or marijuana is prohibited in the Contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition; (iii) state in all solicitations or advertisements for employees placed by or on behalf of the Contractor that the Contractor maintains a drug-free workplace; and (iv) include the provisions of the foregoing clauses in every subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each subcontractor or Contractor.

For the purposes of this section, “*drug-free workplace*” means a site for the performance of work done in connection with a specific contract awarded to a Contractor, the employees of whom are prohibited from engaging in the unlawful manufacture, sale, distribution, dispensation, possession or use of any controlled substance or marijuana during the performance of the contract.

Q. EMPLOYMENT DISCRIMINATION: (the Rules §10.)

During the performance of the contract, the Contractor agrees that:

1. The contractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, or national origin, except where religion, sex, or national origin is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. The contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause, including the names of all contracting agencies with which the contractor has contracts of over \$10,000.
2. The contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that such contractor is an equal opportunity employer. However, notices, advertisements and solicitations placed in accordance with federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this chapter.
3. If the contractor employs more than five employees, the contractor shall (i) provide annual training on the contractor's sexual harassment policy to all supervisors and employees providing services in the Commonwealth, except such supervisors or employees that are required to complete sexual harassment training provided by the Department of Human Resource Management, and (ii) post the contractor's sexual harassment policy in (a) a conspicuous public place in each building located in the Commonwealth that the contractor owns or leases for business purposes and (b) the contractor's employee handbook.
4. The contractor shall include the provisions of subdivisions 1, 2, and 3 in every subcontract or purchase order of over \$10,000, so that such provisions shall be binding upon each subcontractor or vendor.

R. ENVIRONMENTAL LIABILITY: Any costs or expenses associated with environmentally related violations of the law, the creation or maintenance of a nuisance, or releases of hazardous substances, including, but not limited to, the costs of any cleanup activities, removals, remediations, responses, damages, fines, administrative or civil penalties or charges imposed on the Contractor, whether because of actions or suits by any governmental or regulatory agency or by any private party, as a result of the storage, accumulation, or release of any hazardous substances, or any noncompliance with or failure to meet any federal, state or local standards, requirements, laws, statutes, regulations or the law of nuisance by Contractor (or by its agents, officers, employees, subcontractors, consultants, sub consultants, or any other persons, corporations or legal entities employed, utilized, or retained by Contractor) in the performance of any resulting Contract or related activities, shall be paid by Contractor. This paragraph shall survive the termination, cancellation or expiration of this Contract.

- S. E-VERIFY REQUIREMENT OF ANY CONTRACTOR: Pursuant to Code of Virginia, § 2.2-4308.2, any employer with more than an average of 50 employees for the previous 12 months entering into a contract in excess of \$50,000 with Old Dominion University to perform work or provide services pursuant to such contract shall register and participate in the E-Verify program to verify information and work authorization of its newly hired employees performing work pursuant to such contract. Any such employer who fails to comply with these provisions may be debarred from contracting with Old Dominion University and any agency of the Commonwealth for a period up to one year. Such debarment may cease upon the employer's registration and participation in the E-Verify program. If requested, the employer shall present a copy of their Maintain Company page from E-Verify to prove that they are enrolled in E-Verify.
- T. EXCLUSIVITY: The University reserves the right to procure goods or services covered under the contract from a third party when, in the University's sole discretion, it is deemed to be in the University's best interest.
- U. EXTRA CHARGES NOT ALLOWED: The contract price shall reflect all fees to be incurred for the performance of the contract, including all applicable freight and installation charges. Any additional fees that arise during the performance of the contract shall only be paid if approved by the University prior to incurring such fees.
- V. FAVORED CUSTOMER: Firm represents that the prices, terms, warranties, and benefits are comparable to or better than the equivalent terms being offered by the Firm to any present customer.
- W. FORCE MAJEURE: Neither party will be deemed in default or otherwise liable hereunder due to its inability to perform by reason of any fire, earthquake, flood, epidemic, accident, explosion, casualty, strike, lockout, labor controversy, riot, civil disturbance, governmental restrictions, act of public enemy, embargo, war, act of God, or any municipal, county, state, national or international ordinance or law or any executive, administrative, judicial or similar order, including orders from any governing body (which order is not the result of any act or omission to act which would constitute a default under this Agreement), or any failure or delay of any transportation, power, or other essential thing required, or similar causes beyond the Party's control. Any delay in performance will be no greater than the event of force majeure causing the delay. If the delay or failure in the performance of the Party claiming Force Majeure continues for thirty (30) days or more, then the Party not claiming Force Majeure may terminate this Agreement by written notice to the other Party without penalty. Any funds paid will be reimbursed pro rata based on Services not provided.
- X. GRAMM-LEACH-BLILEY ACT: If applicable, the Contractor shall comply with the Act by implementing and maintaining appropriate safeguards to protect and prevent unauthorized release of student, faculty and staff nonpublic information. Nonpublic information is defined as social security numbers, or financial transactions, bank, credit, and tax information.

- Y. **INDEMNIFICATION:** Contractor agrees to indemnify, defend and hold harmless the University,, the Commonwealth of Virginia, and their officers, agents, and employees from any claims, damages, liability, injury, expense of loss, including defense costs and attorney's fees, arising from Contractor's negligence under this contract Accordingly, ODU shall promptly notify Contractor of any claim or action brought against ODU in connection with this Contract. Upon such notification, and at the request and direction of ODU and/or the Office of the Attorney General, Firm will immediately defend any such claim or action pursuant to the provisions and requirements of Virginia Code § 2.2-514.
- Z. **INDEPENDENT CONTRACTOR:** Contractor is not an employee of the University, but is engaged as an independent contractor. The Contractor will indemnify and hold harmless the Commonwealth of Virginia, the University, and its employees and agents, with respect to all withholding, Social Security, unemployment compensation and all other taxes or amounts of any kind relating to the Contractor's performance of this Contract. Nothing in this Contract will be construed as authority for the Contractor to make commitments which will bind the University, or to otherwise act on behalf of the University, except as the University may expressly authorize in writing.
- AA. **INFORMATION TECHNOLOGY ACCESS:** All electronic and information technology procured through this contract must meet the applicable accessibility standards of Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) as amended and is viewable at <http://www.section508.gov>. If requested, the Contractor must provide a detailed explanation of how compliance with Section 508 of the Rehabilitation Act is achieved and a validation of concept demonstration Additionally, in accordance with § 2.2-3504 of the Code of Virginia, the following will apply to all information technology Agreements:

All information technology ("Technology") which is purchased or upgraded by the University will comply with the following non-visual access standards from the date of purchase or upgrade until the expiration of this contract:

1. effective, interactive control and use of the Technology shall be readily achievable by nonvisual means;
2. the Technology equipped for nonvisual access shall be compatible with information technology used by other individuals with whom any blind or visually impaired user of the Technology interacts;
3. nonvisual access technology shall be integrated into any networks used to share communications among employees, program participants or the public; and
4. the technology for nonvisual access shall have the capability of providing equivalent access by nonvisual means to telecommunications or other interconnected network services used by persons who are not blind or visually impaired.

Installation of hardware, software, or peripheral devices used for nonvisual access is not required when the Technology is being used exclusively by individuals who are not blind or visually impaired, but applications programs and underlying operating systems (including the format of the data) used for the manipulation and presentation of information shall permit the installation and effective use of nonvisual access software and peripheral devices.

If requested, the Contractor must provide a detailed explanation of how compliance with the foregoing nonvisual access standards is achieved and a validation of concept demonstration. The requirements of this Paragraph shall be construed to achieve full compliance with the Information Technology Access Act, *Virginia Code* §§ 2.2-3500 through 2.2-3504.

- BB. IMMIGRATION REFORM AND CONTROL ACT OF 1986: Contractor warrants and certifies that it does not and will not during the performance of this contract employ unauthorized alien workers, as defined by the federal Immigration Reform and Control Act of 1986 or violate any other provisions of the Act.
- CC. NON-APPROPRIATION: Funding for any contract between the University and a Contractor is dependent at all times upon the appropriation of funds by the Virginia General Assembly and/or any other organization of the Commonwealth authorized to appropriate such funds. In the event that funding to support this contract is not appropriated, whether in whole or in part, then the Contract may be terminated by the University effective the last day for which appropriated funding is available.
- DD. ORDER AND PAYMENT PROCESSING:
1. In most cases, the University shall issue eVA Purchase Orders for required performance and delivery against the contract.
 2. The Contractor shall be paid when (i) requested work is completed, (ii) the requested work is approved and accepted by the University, and (iii) Contractor has submitted to the Accounts Payable a **proper** invoice for the approved, accepted and completed work.
 3. The Contractor shall not receive payment for work found by the University to be unsatisfactory, or performed in violation of federal, state, or local laws, codes, ordinances, rules or regulations.

Note: It shall be the responsibility of the Contractor to safeguard those materials and/or equipment that have been “prepaid” by the University and shall also certify at the completion of the project that same was either (i) used during the performance and shall also certify at the completion of the project, or (ii) turned over as property to the University.

4. Charge Card Payments:
 1. In an effort to increase administrative efficiency and streamline the invoice and payment process, the University may elect to process those contracted goods/services less than \$5,000, as applicable, via use of the University’s Small Purchase Charge Card (“PCard”).
 2. In those instances deemed to be in “its best interest”, the University may elect to process transactions via its ‘Gold’ PCARD, not to exceed transactions up to \$50,000 per order, or monthly transactions up to \$250,000 accumulative, unless otherwise approved and/or stipulated.
5. ePayables: Contractors are strongly encouraged to sign up for electronic payments. For more information about available payment options, contact University’s Accounts Payable department at invoice@odu.edu or view

<http://www.bankofamerica.com/epayablesvendors>.

6. Check or ACH:

1. All **proper** invoices shall be emailed to invoice@odu.edu and reference the ODU PO number on the invoice. Invoice requirements are included here: <https://www.odu.edu/vendors/responsibilities/invoice-requirements>
2. Invoices not meeting requirements may be returned to the vendor for correction.

EE. PAYMENT PROVISIONS:

1. By the University:

1. Prompt Payment: (the Rules §42.)

- a. The University shall promptly pay for the completely delivered goods or services by the required payment date.
- b. Payment shall be deemed to have been made when offset proceedings have been instituted, as authorized under the Virginia Debt Collection Act (§ 2.2-4800 et seq.) of the Code of Virginia.
- c. Separate payment dates may be specified for contracts under which goods or services are provided in a series of partial deliveries or executions to the extent that such contract provides for separate payment for such partial delivery or execution.

2. Defect Or Impropriety In The Invoice Or Goods And/Or Services Received: (the Rules §43.)

In instances where there is a defect or impropriety in an invoice or in the goods or services received, the University shall notify the Contractor of the defect or impropriety, if the defect or impropriety would prevent payment by the payment date. The notice shall be sent within 15 days after receipt of the invoice or the goods or services.

3. Date Of Postmark Deemed To Be Date Payment Is Made: (the Rules §44.)

In those cases where payment is made by mail, the date of postmark shall be deemed to be the date payment is made for purposes of these Rules.

4. Interest Penalty; Exceptions: (the Rules §44.)

- a. Interest shall accrue, at the rate determined pursuant to subsection ii., on all amounts owed by the University to a Contractor that remain unpaid after seven days following the payment date. However, nothing in this section shall affect any contract providing for a different rate of interest, or for the payment of interest in a different manner.
- b. The rate of interest charged the University pursuant to subsection i. shall be the base rate on corporate loans (prime rate) at large United States money center commercial banks as reported daily in the publication entitled The Wall Street Journal. Whenever a split prime rate is published, the lower of the two rates shall be used. However, in no event shall the rate of interest charged exceed the rate of interest established pursuant to § 58.1-1812 of the Code of Virginia.
- c. Notwithstanding subsection i., no interest penalty shall be charged when payment is delayed because of disagreement between the University and a Contractor regarding the quantity, quality or time of delivery of goods or

- services or the accuracy of any invoice received for the goods or services. The exception from the interest penalty provided by this subsection shall apply only to that portion of a delayed payment that is actually the subject of the disagreement and shall apply only for the duration of the disagreement.
- d. This section shall not apply to retainage on construction contracts that provides for progress payments, during the period of time prior to the date the final payment is due. Nothing contained herein shall prevent a Contractor from receiving interest on such funds under an approved escrow agreement.
 - e. Notwithstanding subsection i., no interest penalty shall be paid to any debtor on any payment, or portion thereof, withheld pursuant to the Comptroller's Debt Setoff Program, as authorized by the Virginia Debt Collection Act (§ 2.2-4800 et seq.) of the Code of Virginia, commencing with the date the payment is withheld. If, as a result of an error, a payment or portion thereof is withheld, and it is determined that at the time of setoff no debt was owed to the Commonwealth, then interest shall accrue at the rate determined pursuant to subsection 2. on amounts withheld that remains unpaid after seven days following the payment date.
5. To Contractor: Under any resulting contract, Contractor is hereby obligated:
- a. To submit all invoices for goods/services ordered, delivered and accepted directly to:
 - a. Old Dominion University
Accounts Payable
Rollins Hall, Room 202
Norfolk, Virginia 23529; or
 - b. invoice@odu.edu
 - b. Elements of a proper invoice are provided on the University Payment Website in sections noting Invoice Requirements and Elements of a Proper Invoice. Invoices not inclusive of elements deemed as a proper invoice may be returned for correction. Additional information can be found: <https://www.odu.edu/vendors/responsibilities/invoice-requirements>. Any payment terms requiring payment in less than 30 days will be regarded as requiring payment 30 days after invoice or delivery, whichever occurs last. This shall not affect offers of discounts for payment in less than 30 days, however.
 - c. All goods or services provided shall be billed by the Contractor at the agreed to contract price.
 - d. Unreasonable Charges. Under certain emergency procurements and for most time and material purchases, final job costs cannot be accurately determined at the time orders are placed. In such cases, Contractors should be put on notice that final payment in full is contingent on a determination of reasonableness with respect to all invoiced charges. Charges which appear to be unreasonable will be researched and challenged, and that portion of the invoice held in abeyance until a settlement can be reached. Upon determining that invoiced charges are not reasonable, the University shall promptly notify the Contractor, in writing, as to those charges which it considers unreasonable

and the basis for the determination. A Contractor may not institute legal action unless a settlement cannot be reached within thirty (30) days of notification. The provisions of this section do not relieve the University of its prompt payment obligations with respect to those charges which are not in dispute.

2. To Subcontractors: *(the Rules §45.)*

Under any resulting contract, Contractor shall be obligated:

1. To pay the subcontractor(s) within seven (7) days of the Contractor's receipt of payment from the University for the proportionate share of the payment received for work performed by the subcontractor(s) under the contract; or
2. To notify the University and the subcontractor(s), in writing, of the Contractor's intention to withhold payment and the reason.
3. To pay the subcontractor(s) interest at the rate of one percent per month (unless otherwise provided under the terms of the contract) on all amounts owed by the Contractor that remain unpaid seven (7) days following receipt of payment from the University, except for amounts withheld as stated in (2) above. The date of mailing of any payment by U. S. Mail is deemed to be payment to the addressee. These provisions apply to each sub-tier Contractor performing under the primary contract. A Contractor's obligation to pay an interest charge to a subcontractor may not be construed to be an obligation of the University.

FF. REPRESENTATIONS AND WARRANTIES: All representations and warranties made by the University are made to the best of its knowledge at the time the representation or warranty is made. University will use its best efforts to comply with all conditions and restrictions on its accounts and the services provided hereunder.

GG. SEVERABILITY: The provisions of the contract shall be deemed to be severable, and should any or more of such provisions be declared or adjudged to be invalid or unenforceable, the remaining provisions shall be unaffected thereby and shall remain in full force and effect.

HH. STATUTORY DAMAGES: ODU is not authorized to waive damages granted or otherwise available by statute.

II. SOVEREIGN IMMUNITY: ODU is an agency of the Commonwealth of Virginia and is afforded the protection of sovereign immunity under Virginia law. Any claims against ODU or the Commonwealth are subject to the requirements established under Virginia law for bringing such claims against ODU or the Commonwealth, including the Virginia Tort Claims Act (Virginia Code §§ 8.01-195.1 et seq.) and other applicable statutes relating to claims against the Commonwealth or its agencies. Notwithstanding any other provision, nothing in this contract shall be deemed to be or construed as a waiver of ODU's or the Commonwealth's sovereign immunity, or any other applicable requirements under Virginia law for bringing claims against ODU or the Commonwealth. The total cumulative liability of the University, its officers, employees, and agents in connection with this contract or in connection with any goods, services, actions or omissions relating to this contract, shall not under any circumstance exceed payment of the maximum purchase price.

JJ. TAX EXEMPT: Sales to the Commonwealth of Virginia are exempt from State sales tax. State sales and use tax certificates of exemption, Form ST-12, will be issued upon request. Deliveries against this contract shall usually be free of Federal excise and transportation taxes. The Commonwealth's excise tax exemption registration number is 54-73-0076K.

KK. TERMINATION WITH CAUSE:

1. In the event that the Contractor shall for any reason or through any cause be in default of the terms of the contract, the University may give the Contractor written notice of such default by certified mail/return receipt requested.
2. Prior to termination of the contract, the University shall give the Contractor and its surety ten (10) calendar day's written notice, during which the Contractor and/or his surety may rectify the cause of the termination. If rectified to the satisfaction of the University within said ten (10) days, the University may rescind the notice of termination. If Contractor does not, the termination for cause shall become effective at the end of the ten-day (10) notice period.
3. In the alternative, the University may postpone the effective date of the termination notice, at its sole discretion, if it should receive reassurances from the Contractor and/or its surety that the causes of termination will be remedied in a time and manner which the University finds acceptable. If at any time more than ten (10) days after the notice of termination, the University determines that Contractor and/or its surety has not or is not likely to rectify the causes of termination in an acceptable manner or within the time allowed, then the University may immediately terminate the contract for cause by giving written notice to the Contractor and its surety. In no event shall termination for cause terminate the obligations of the Contractor's surety on its payment and performance bonds.
4. Notice of terminations, whether initial or given after a period of postponement, may be served upon the Contractor and the surety by mail or any other means at their last known places of business in Virginia or elsewhere, by delivery to any officer or management/supervisory employee of either wherever they may be found, or, if no such officer, employee or place of business is known or can be found by reasonable inquiry within three (3) days, by posting the notice at the job site. Failure to accept or pick up registered or certified mail addressed to the last known address shall be deemed to be delivery.
5. Upon termination, the Contractor shall withdraw its personnel and equipment, cease performance of any further work under the contract, and turn over to the University any work in process for which payment has been made.
6. The University shall take possession of the premises and of all materials, tools, and appliances thereon and finish the work by whatever method it may deem expedient. In such case the Contractor shall not be entitled to receive any further payment. If the expense of finishing the work, including compensation for additional managerial and administrative services shall exceed the unpaid balance of the contract price, the Contractor shall pay the difference to the University, together with any other expenses of terminating the contract and having it completed by others.
7. In the event of violations of law, safety or health standards and regulations, the contract may be immediately cancelled and terminated by the University and provisions herein with respect to opportunity to cure default shall not be applicable.

LL. TERMINATION BY UNIVERSITY FOR CONVENIENCE:

1. The University may terminate the contract at any time for convenience, in whole or in part, upon giving the Contractor notice of such termination. Upon such termination, the Contractor shall immediately cease work and remove from the project site all its labor forces and materials that the University elects not to purchase or to assume in the manner hereinafter provided. Upon such termination, the Contractor shall take such steps as University may require to assign to the University the Contractor's interest in all subcontracts and purchase orders designated by University. After all such steps have been taken to University's satisfaction, the Contractor shall receive as full compensation for termination and assignment the following:
 1. All amounts due for work performed subsequent to the latest Request for Payment through the date of termination;
 2. Reasonable compensation for the actual cost of demobilization incurred by the Contractor as a direct result of such termination;
 3. The Contractor shall not be entitled to any compensation for lost profits or for any other type of contractual compensation or damage other than those provided by the preceding sentence; and
 4. Upon payment of the forgoing, University shall have no further obligations to the Contractor of any nature.
2. In no event shall termination for the convenience of the University terminate the obligations of the Contractor's surety on its payment and performance bonds.

MM. TESTING AND INSPECTION: The University reserves the right to conduct any test/inspection it may deem advisable to assure goods and services conform to the specifications.

NN. VIRGINIA FOIA: Nothing contained herein is intended to limit ODU's compliance with the Virginia Freedom of Information Act ("VFOIA"). For clarity, agreements and pricing between ODU and its vendors are not considered to be exempt from VFOIA requests.

OO. VIRGINIA MINIMUM WAGE ACT: All Contractors must comply with the state and federal minimum wage requirements. Every Contractor shall pay to each of their employee's wages at a rate not less than the greater of (i) the adjusted state hourly minimum wage or (ii) the federal minimum wage as prescribed by Virginia Minimum Wage Act (Virginia Code § 40.1-28.8 et seq.) and the U.S. Fair Labor Standards Act (29 U.S.C. § 201 et seq.), respectively. For details on minimum wage law requirements, contact the Department of Labor & Industry at: <https://doli.virginia.gov>.

PP. WAIVER: No waiver of any right will be deemed a continuing waiver, and no failure on the part of either party to exercise wholly or in part any right will prevent a later exercise of such or any other right. Notwithstanding anything contained herein to the contrary, ODU is an agency of the Commonwealth of Virginia and as such, pursuant to *Virginia Code* § 2.2-514, cannot waive or settle legal claims that ODU may have against another party nor may ODU bestow any right or obligation that is beyond the duly granted authority of the signatory to bestow or incur on behalf of the Commonwealth of Virginia.

OLD DOMINION UNIVERSITY
SPECIAL TERMS AND CONDITIONS

The following 'special' terms and conditions shall, as applicable, be incorporated into the contract.

A. COMPANY PERSONNEL STANDARDS:

1. Contractor shall provide trained personnel who shall be qualified to properly maintain/perform/test for services specified herein. If any of the Contractor's personnel are not satisfactory in the performance of services to be furnished hereunder in a proper manner and satisfactory to the University, the Contractor shall remove any such personnel and replace them with satisfactory personnel.
2. Contractor shall use all reasonable care, consistent with its rights to manage and control its operations, not to employ any persons or use any labor or have any equipment or permit any condition to exist which shall or may cause or be conducive to pose any liability to the general public as well as any activity to be construed as a nuisance. The University retains the right to require the Contractor to halt all work activities until such conditions are resolved.

- B. INSURANCE: The contract will have the following insurance coverage. For construction contracts, if any subcontractors are involved, the subcontractor will have workers' compensation insurance in accordance with §§ 2.2-4332 and 65.2-800 et seq. of the *Code of Virginia*. The Contractor further certifies that the Contractor and any subcontractors will maintain these insurance coverage's during the entire term of the contract and that all insurance coverage's will be provided by insurance companies authorized to sell insurance in Virginia by the Virginia State Corporation Commission.

MINIMUM INSURANCE COVERAGES AND LIMITS REQUIRED FOR MOST CONTRACTS:

1. **Workers' Compensation** - The Contractor will maintain workers compensation coverage in compliance with the laws of the Commonwealth of Virginia. The coverage must have statutory limits and be with an insurer licensed to conduct business in the Commonwealth of Virginia. The insurer must have an A. M. Best rating of A- or better. As an alternative, it is acceptable for the Contractor to be insured by a group self-insurance association that is licensed by the Virginia Bureau of Insurance. Coverage is compulsory for employers of three or more employees, to include the employer. Contractors who fail to notify the Commonwealth of increases in the number of employees that change their workers' compensation requirements under the Code of Virginia during the course of the contract shall be in noncompliance with the contract.
2. **Employers Liability Insurance** - The Contractor will also carry employers liability insurance with a limit of at least \$1,000,000 bodily injury by accident/\$1,000,000 bodily injury by disease policy limit/\$1,000,000 bodily injury by disease each employee.
3. **Commercial General Liability** - The Contractor will maintain a general liability policy with \$1,000,000 combined single limits. Coverage is to be on an occurrence basis with an insurer licensed to conduct business in the Commonwealth of Virginia. The insurer must have an A.M. Best rating of A- or better. The insurer must list the member locality as an additional insured. The endorsement must be issued by the insurance company. The contract must state the insurance provided in the additional insured endorsement is primary without contribution from other insurance available to the additional insured. A notation on the certificate of insurance referencing the additional insured status is not sufficient.

4. **Automobile Liability** - The Contractor will maintain automobile liability insurance with limits of at least \$1,000,000. The coverage is to be written with a symbol “1”. The insurer must be licensed to conduct business in the Commonwealth of Virginia. The insurer must have an A. M. Best rating of A- or better.
5. The Contractor’s Certificate of Insurance must (i) specify the specific University project, (ii) name both the Commonwealth of Virginia and Old Dominion University as “additional insured”, and (iii) mark/notate in the ‘addl insd’ column for each type of insurance coverage listed EXCEPT WORKERS COMPENSATION and PROFESSIONAL LIABILITY INSURANCE .
6. **Cyber Security Liability:** Contractor will maintain cyber liability insurance based on their level of data access. The following tiered structure ensures appropriate coverage for Contractors providing IT services, cloud storage, payment processing, healthcare technology, and other data related services.
 - a. Tiered Cyber Liability Coverage for Vendors
 1. Tier 1: General Vendors (Low Risk – Limited Data Access) Examples: Website hosting, software providers for general university operations, HR/payroll processors without PHI access.
 - a. Minimum Coverage Required: \$1M–\$5M
 - b. Data breach response & notification.
 - c. Business interruption coverage for IT disruptions.
 - d. Third-party liability for unauthorized data access.
 2. Tier 2: Vendors Handling Student, Employee, or Financial Data (Moderate Risk) Examples: Student record platforms, financial aid/payment processors, cloud storage services.
 - a. Minimum Coverage Required: \$10M–\$25M
 - b. Compliance with FERPA, GLBA, and state data protection laws.
 - c. Ransomware & cyber extortion coverage.
 - d. Forensic investigation support.
 - e. Coverage for legal defense in case of data breach lawsuits.
 3. Tier 3: Vendors Handling Patient or Medical Research Data (High Risk – PHI Access) Examples: Electronic Health Records (EHR) providers, telemedicine platforms, medical research databases.
 - a. Minimum Coverage Required: \$25M–\$50M
 - b. HIPAA & HITECH compliance coverage.
 - c. Fines & penalties coverage for regulatory violations.
 - d. Protection against third-party claims for PHI breaches.
 - e. Enhanced network security requirements.
 - f. Incident response services & 24/7 breach monitoring.

OLD DOMINION UNIVERSITY
ADDITIONAL SPECIAL TERMS AND CONDITIONS

REGULATED DATA ADDEDNUM:

A. DEFINITIONS:

1. "End User" means the individuals authorized by the University to access and use the Services provided by the Selected Firm/Vendor under this agreement.
2. The "Agreement" includes the contract, this addendum and any additional addendums and attachments to the contract.
3. "University" or "the University" means Old Dominion University, its trustees, officers and employees. The point of contact for the University is the contract administrator for this Agreement.
4. "Vendor" or "the Vendor" means the contractor, firm or organization that is selected to fulfill this Agreement, including any subcontractor selected by the Vendor to fulfill any portion of this Agreement.
5. "University Data" includes all Personally Identifiable Information and other information that is not intentionally made generally available by the University on public websites or publications, including but not limited to business, administrative and financial data, intellectual property, and patient, student and personnel data.
6. "Personally Identifiable Information" includes but is not limited to: personal identifiers such as name, address, phone number, date of birth, Social Security number, and student or personnel identification number; "personal information" as defined in Virginia Code section 18.2-186.6 and/or any successor laws of the Commonwealth of Virginia; personally identifiable information contained in student education records as that term is defined in the Family Educational Rights and Privacy Act, 20 USC 1232g; "medical information" as defined in Virginia Code Section 32.1-127.1:05; "protected health information" as that term is defined in the Health Insurance Portability and Accountability Act, 45 CFR Part 160.103; nonpublic personal information as that term is defined in the Gramm-Leach-Bliley Financial Modernization Act of 1999, 15 USC 6809; credit and debit card numbers and/or access codes and other cardholder data and sensitive authentication data as those terms are defined in the Payment Card Industry Data Security Standards; other financial account numbers, access codes, driver's license numbers; and state- or federal-identification numbers such as passport, visa or state identity card numbers.
7. "Security Breach" means a security-relevant event in which the security of a system or procedure involving University Data is breached, and in which University Data is exposed to unauthorized disclosure, access, alteration, or use.
8. "Service" or "Services" means any goods or services acquired by the University from the Vendor.
9. "Securely Destroy" means taking actions that render data written on physical (e.g., hardcopy, microfiche, etc.) or electronic media unrecoverable by both ordinary and extraordinary means. These actions must meet or exceed those sections of the National

Institute of Standards and Technology (NIST) SP 800-88 guidelines relevant to data categorized as high security.

B. AUDITS:

1. The University reserves the right in its sole discretion to perform audits of the Vendor at the University's expense to ensure compliance with the terms of this Agreement. The Vendor shall reasonably cooperate in the performance of such audits. This provision applies to all agreements under which the Vendor must create, obtain, transmit, use, maintain, process, or dispose of University Data.
2. If the Vendor must under this agreement create, obtain, transmit, use, maintain, process, or dispose of the subset of University Data known as Personally Identifiable Information, protected health information, or financial or business data that is considered restricted data such as transaction data, the Vendor will at its expense conduct or have conducted at least annually a(n):
 - i. American Institute of CPAs Service Organization Controls (SOC) Type II audit, or other security audit with audit objectives deemed sufficient by the University, which attests the Vendor's security policies, procedures and controls;
 - ii. Vulnerability scan, performed by a scanner approved by the University, of the Vendor's electronic systems and facilities that are used in any way to deliver electronic services under this Agreement; and
 - iii. Formal penetration test, performed by a process and qualified personnel approved by the University, of the Vendor's electronic systems and facilities that are used in any way to deliver electronic services under this Agreement.
3. Additionally, the Vendor will provide the University upon request the results of the above audits, scans and tests, and will promptly modify its security measures as needed based on those results in order to meet its obligations under this Agreement. The University may require, at University expense, the Vendor to perform additional audits and tests, the results of which will be provided promptly to the University.

C. COMPLIANCE:

1. The Vendor will comply with all applicable laws and industry standards in performing services under this Agreement. Any Vendor personnel visiting the University's facilities will comply with all applicable University policies regarding access to, use of, and conduct within such facilities. The University will provide copies of such policies to the Vendor upon request.
2. The Vendor warrants that the service it will provide to the University is fully compliant with and will enable the University to be compliant with relevant requirements of all laws, regulation, and guidance applicable to the University and/or the Vendor, including but not limited to: the Family Educational Rights and Privacy Act (FERPA), Health Insurance Portability and Accountability Act (HIPAA) and Health Information Technology for Economic and Clinical Health Act (HITECH), Gramm-Leach-Bliley Financial Modernization Act (GLB), Payment Card Industry Data Security Standards (PCI-DSS), Americans with Disabilities Act (ADA), Section 508 of the Rehabilitation Act via a Voluntary Product Accessibility Template (VPAT), Federal Export Administration

Regulations, Defense Federal Acquisition Regulation, and NIST 800-171 for Controlled Unclassified Information. Vendor is required to monitor all subservice providers and inform the University of any changes to subservice providers.

3. If the Payment Card Industry Data Security Standards (PCI-DSS) are applicable to the Vendor's service provided to the University, the Vendor will furnish proof of compliance with PCI-DSS.

D. DATA AUTHENTICITY, INTEGRITY AND AVAILABILITY:

1. The Vendor shall maintain a formal security program in accordance with industry standards that is designed to: (i) ensure the security and integrity of University Data; (ii) protect against threats or hazards to the security or integrity of University Data; and (iii) prevent unauthorized access to University Data.
2. The Vendor shall be responsible for ensuring that University Data, per the Virginia Public Records Act, "is preserved, maintained, and accessible throughout their lifecycle, including converting and migrating electronic data as often as necessary so that information is not lost due to hardware, software, or media obsolescence or deterioration."
3. The Vendor will ensure backups are successfully completed daily or more frequently and that restoration capability is maintained for restoration to a point-in-time and/or to the most current backup available.
4. The Vendor will maintain an uptime of 99.99% or greater, as agreed to for the contracted services via the use of appropriate redundancy, continuity of operations and disaster recovery planning and implementations.

E. DATA PRIVACY:

1. The Vendor will use University Data only for the purpose of fulfilling its duties under this Agreement and will not share such data with or disclose it to any third party without the prior written consent of the University, except as required by this Agreement or as otherwise required by law.
2. University Data will not be stored outside the United States without prior written consent from the University.
3. The Vendor will provide access to University Data only to its employees and subcontractors who need to access the data to fulfill obligations under this Agreement. The Vendor will ensure that the Vendor's employees who perform work under this Agreement have read, understood, and received appropriate instruction as to how to comply with the data protection provisions of this Agreement.
4. If the Vendor will have access to the University's Education records as defined under the Family Educational Rights and Privacy Act (FERPA), the Vendor acknowledges that for the purposes of this Agreement it will be designated as a "school official" with "legitimate educational interests" in the University Education records, as those terms have been defined under FERPA and its implementing regulations, and the Vendor agrees to abide by the limitations and requirements imposed on school officials. The Vendor will use the Education records only for the purpose of fulfilling its duties under this Agreement for University's and its End User's benefit, and will not share such data with or disclose it to

any third party except as provided for in this Agreement, required by law, or authorized in writing by the University.

F. DATA TRANSFER UPON TERMINATION OR EXPIRATION:

1. The Vendor's obligations shall survive termination of this Agreement until all University Data has been returned or Securely Destroyed
2. Upon termination or expiration of this Agreement, the Vendor will ensure that all University Data are securely transferred, returned or destroyed as directed by the University in its sole discretion. Transfer/migration to the University or a third party designated by the University shall occur without significant interruption in service within a reasonable time. The Vendor shall ensure that such transfer/migration uses facilities and methods that are compatible with the relevant systems of the University or its transferee, and to the extent technologically feasible, that the University will have reasonable access to University Data during the transition.
3. In the event that the University requests destruction of its data, the Vendor agrees to Securely Destroy all data in its possession and in the possession of any subcontractors or agents to which the Vendor might have transferred University data. The Vendor agrees to provide documentation of data destruction to the University and to complete any required Commonwealth of Virginia documentation regarding the destruction of University Data.
4. The Vendor will notify the University of impending cessation of its business and any contingency plans. This includes immediate transfer of any previously escrowed assets and data and providing the University access to the Vendor's facilities to remove and destroy University-owned assets and data. The Vendor shall implement its exit plan and take all necessary actions to ensure a smooth transition of service with minimal disruption to the University. The Vendor will also provide a full inventory and configuration of servers, routers, other hardware, and software involved in service delivery along with supporting documentation, indicating which if any of these are owned by or dedicated to the University. The Vendor will work closely with its successor to ensure a successful transition to the new equipment, with minimal downtime and effect on the University, all such work to be coordinated and performed in advance of the formal, final transition date.

G. DATA SECURITY:

1. The Vendor will store and process University Data in accordance with commercial best practices, including appropriate administrative, physical, and technical safeguards, to secure such data from unauthorized access, disclosure, alteration, and use. Such measures will be no less protective than those used to secure the Vendor's own data of a similar type, and in no event less than reasonable in view of the type and nature of the data involved.
2. Without limiting the foregoing, Selected Firm/Vendor warrants that all electronic University Data will be encrypted in transmission (including via web interface) in accordance with latest version of National Institute of Standards and Technology Special Publication 800- 53.

3. If the Selected Firm/Vendor stores Personally Identifiable Information as part of this agreement, the Selected Firm/Vendor warrants that the information will be stored in accordance with latest version of National Institute of Standards and Technology Special Publication 800-53.
 4. Selected Firm/Vendor will use industry-standard and up-to-date security tools and technologies such as anti-virus protections and intrusion detection methods in providing Services under this agreement.
 5. The University may inspect the data center used to store and process University Data at any time upon request.
- H. DISCLOSURE: Unless expressly agreeing to the contrary in writing, all goods, products, materials, documents, reports, writings, video images, photographs or papers of any nature including software or computer images prepared or provided by the Contractor (or its subcontractors) for the University will not be disclosed to any other person or entity without the written permission of the University.
- I. SECURITY BREACH:
1. Response. Upon becoming aware of a Security Breach, or of circumstances that are reasonably understood to suggest a likely Security Breach, the Vendor will notify the University within 72 hours, fully investigate the incident, and cooperate fully with the University's investigation of and response to the incident. Except as otherwise required by law, the Vendor will not provide notice of the incident directly to individuals whose Personally Identifiable Information was involved, regulatory agencies, or other entities, without prior written permission from the University.
 2. Liability. In addition to any other remedies available to the University under law or equity, the Vendor will pay for or reimburse the University in full for all costs incurred by the University in investigation and remediation of such Security Breach caused by the Vendor, including but not limited to providing notification to individuals whose Personally Identifiable Information was compromised and to regulatory agencies or other entities as required by law or contract; providing one year's credit monitoring to the affected individuals if the Personally Identifiable Information exposed during the breach could be used to commit financial identity theft; and the payment of legal fees, audit costs, fines, and other fees imposed by regulatory agencies or contracting partners as a result of the Security Breach. The Vendor agrees to indemnify, hold harmless and defend the University from and against any and all claims, damages, or other harm related to such Security Breach.
- J. REQUESTS FOR DATA, RESPONSE TO LEGAL ORDERS OR DEMANDS FOR DATA:
1. Except as otherwise expressly prohibited by law, the Vendor will:
 - i. immediately notify the University of any subpoenas, warrants, or other legal orders, demands or requests received by the Vendor seeking University Data;
 - ii. consult with the University regarding its response;

- iii. cooperate with the University's requests in connection with efforts by the University to intervene and quash or modify the legal order, demand or request; and
 - iv. upon the University's request, provide the University with a copy of its response.
- 2. If the University receives a subpoena, warrant, or other legal order, demand (including request pursuant to the Virginia Freedom of Information Act) or request seeking University Data maintained by the Vendor, the University will promptly provide a copy to the Vendor. The Vendor will promptly supply the University with copies of data required for the University to respond, and will cooperate with the University's reasonable requests in connection with its response.
- 3. The University may request and obtain access to University Data and related logs at any time for any reason.

K. EMPLOYEE BACKGROUND CHECKS AND QUALIFICATIONS:

- 1. The Vendor shall ensure that its employees who will have potential access to University Data have passed appropriate, industry standard, background screening and possess the qualifications and training to comply with the terms of this agreement.

L. RIGHTS AND LICENSE IN AND TO UNIVERSITY DATA: The parties agree that as between them, all rights including all intellectual property rights in and to University Data shall remain the exclusive property of the University, and the Vendor has a limited, nonexclusive license to use these data as provided in this Agreement solely for the purpose of performing its obligations hereunder. This Agreement does not give a party any rights, implied or otherwise, to the other's data, content, or intellectual property, except as expressly stated in the Agreement.

M. NO END USER AGREEMENTS: This Addendum and the Vendor's Contract are the entire agreement between the University (including University employees and other End Users) and the Vendor. If the Vendor enters into terms of use agreements or other agreements or understandings, whether electronic, click-through, verbal or in writing, with University employees or other End Users, such agreements shall be null, void and without effect, and the terms of this Addendum and the Vendor's Contract shall apply.

TECHNOLOGY:

A. CONFIDENTIALITY (University): The University agrees that neither it nor its employees, representatives, or agents shall knowingly divulge any proprietary information with respect to the operation of the software, the technology embodied therein, or any other trade secret or proprietary information related thereto, except as specifically authorized by the contractor in writing or as required by the Freedom of Information Act or similar law. It shall be the contractor's responsibility to fully comply with *the Rules §34*. All trade secrets or proprietary information must be identified in writing or other tangible form and conspicuously labeled as "proprietary" either prior to or at the time of submission to the University.

- B. CONFIDENTIALITY (Contractor): The contractor assures that information and data obtained as to personal facts and circumstances related to patients or clients will be collected and held confidential, during and following the term of this contract, and will not be divulged without the individual's and the agency's written consent. Any information to be disclosed, except to the agency, must be in summary, statistical, or other form which does not identify particular individuals. Contractors and their employees working on this project may be required to sign the Confidentiality statement.
- C. EXCESSIVE DOWNTIME: Equipment or software furnished under the contract shall be capable of continuous operation. Should the equipment or software become inoperable for a period of more than 24 hours, the contractor agrees to pro-rate maintenance charges to account for each full day of inoperability. The period of in operability shall commence upon initial notification. In the event the equipment or software remains inoperable for more than __ consecutive calendar days, the contractor shall promptly replace the equipment or software at no charge upon request of the University. Such replacement shall be with new, unused product(s) of comparable quality, and must be installed and operational within __days following the request for replacement.
- D. LATEST SOFTWARE VERSION: Any software product(s) provided under the contract shall be the latest version available to the general public as of the due date of this solicitation.
- E. NO END USER CONTRACTS: This Contract is the entire contract between the University (including University employees and other End Users) and the Contractor. In the event that the Contractor enters into terms of use contracts or other contracts or understandings, whether electronic, click-through, verbal or in writing, with University employees or other End Users, such contracts shall be null, void and without effect, and the terms of this Contract shall apply.
- F. ACCESSIBILITY:
1. **Compliance Requirement.** All information and communications technology (ICT) purchased or upgraded pursuant to this Contract for use by any covered entity of the Commonwealth shall comply with the Information Technology Access Act, §§ 2.2-3500 through § 2.2-3505 of the Code of Virginia.
 2. **Certification or Documentation.** For ICT delivered under this Contract that will be used by a covered entity of the Commonwealth or made available to the public, Supplier must certify that the ICT conforms with "accessibility," as that term is defined in Virginia Code § 2.2-3501.
- If the supplier cannot certify full conformance of accessibility, the supplier must provide:
- i. a Supplier-paid and completed Accessibility Conformance Report (as that term is defined in Virginia Code § 2.2-3501) indicating the level of conformance with accessibility for the ICT being procured; and

- ii. a Supplier-paid and completed Vendor Accessibility Roadmap (as that term is defined in Virginia Code § 2.2-3501) documenting any areas of nonconformance and including a timeline for each nonconforming area's completion.
- 3. **No Waiver of Supplier Obligations.** Consistent with 28 C.F.R. § 35.201 and 36 C.F.R. Part 1194, Appendix A, § E202, the covered entity of the Commonwealth may, in its sole discretion, procure non-accessible ICT, if such procurement does not result in individuals with disabilities being denied the benefit of any program, service, or activity. This discretion does not waive Supplier's obligations to comply with accessibility requirements and provide required certifications or documentation.